

Calendar Line 2

Case Name: *Eric Hartman vs City of San Jose- Finance Department et al*

Case No.: 24CV444291

Plaintiff moves to reclassify this action from an unlimited civil case to a limited civil case. Defendant opposes and argues that the matter should instead be reclassified as a small claims action.

Under Code of Civil Procedure section 403.040, the Court may reclassify an action upon motion where the amount in controversy falls within the jurisdictional limits of a different classification. A limited civil case is appropriate where the amount in controversy does not exceed \$35,000. There is no dispute, and the Court finds, that the matter will necessarily result in a verdict below the jurisdictional amount required by statute for classification as an unlimited civil case. (*Hiona v. Superior Court* (2020) 48 Cal.App.5th 866, 872; *Stern v Superior Court* (2003) 105 Cal.App.4th 223, 230–231.)

Small claims jurisdiction is governed by Code of Civil Procedure section 116.220 and is subject to separate procedural requirements and party limitations. If a plaintiff files an action as a limited civil case, it cannot be transferred to the small claims division without the plaintiff's consent. (*Rosenberg v. Superior Court* (1998) 67 Cal.App.4th 860, 867.) Defendant cites no authority permitting reclassification of a pending unlimited civil action into small claims on motion.

Accordingly, the motion to reclassify is GRANTED and Defendant's request to reclassify the action as a small claims matter is DENIED. The action is reclassified as a limited civil case.

The Court will prepare the final order.

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Calendar Line 5

Case Name: *Shabnam Ansari v. Fairchild Imaging, Inc., et al.*

Case No.: 25CV477830

Before the Court is Defendant BAE SYSTEMS, BAE SYSTEMS IMAGING SOLUTIONS's (erroneously sued as "BAE Systems, Inc.") ("Defendant" or "BAE Systems") demurrer to the Complaint filed by Plaintiff Shabnam Ansari ("Plaintiff").

This is an action for wrongful termination. According to the allegations of the Complaint, Plaintiff, who is Iranian, began working for Defendants Fairchild Imaging, Inc. and BAE Systems as a Senior Principal Engineer. (Complaint, ¶ 34.) In 2019, Plaintiff was "aware" that Defendant Doug Teeter, a manager at Fairchild Imaging, Inc., Hamamatsu Corporation and BAE Systems, possessed an animosity towards Iranians due to his negative feelings about his Iranian son-in-law. (*Id.*, ¶¶ 21, 36.) Plaintiff informed Human Resources ("HR") that Teeter was attempting to get her fired due to this animosity, including providing negative performance reviews despite Plaintiff performing in a satisfactory manner; however, HR did nothing to prevent him from harassing and discriminating against her. (*Id.*, ¶¶ 37-38.)

In November 2024, the company underwent a reorganization and changed its name to Fairchild Imaging, Inc., with Plaintiff being placed two levels below Teeter and under the direct supervision of Defendant Carol Zhao, who also began to harass her. (Complaint, ¶¶ 40-41, 43.) HR ignored Plaintiff's complaint about her new assignment and Teeter's harassment but instead of intervening, HR started to investigate her and set up a series of meetings where they harassed her about her job performance. (*Id.*, ¶¶ 44-45.)

On April 9, 2025, Plaintiff was admitted to the ER after suffering an extreme medical emergency and took the next two days off to deal with her condition. (Complaint, ¶ 46.) HR denied Plaintiff's request to remotely attend a meeting with HR that was scheduled for April 14. (*Id.*, ¶ 47.) On April 14, Plaintiff went to her primary care physician and took off April 17-22 to deal with her medical condition. (*Id.*, ¶¶ 48, 50.) However, Plaintiff was informed on April 21, 2025 that she was terminated from her employment. (*Id.*, ¶ 50.) Plaintiff alleges that she suffered from a disability that defendants were aware of and she was terminated because of it as well as her national origin and for requesting medical leave and complaining about the harassment and discrimination she was subjected to. (*Id.*, ¶¶ 51, 119, 164.)

Based on the foregoing, Plaintiff initiated this action with the filing of the Complaint on October 16, 2025, asserting the following causes of action: (1) national origin discrimination in violation of Government Code § 12940, subd. (a) (The Fair Employment and Housing Act ("FEHA" or the "Act")) (against the corporate defendants); (2) harassment based on national origin and/or perceived national origin in violation of FEHA (against the corporate defendants, Teeter and Zhao); (3) discrimination based on actual and/or perceived disability in violation of FEHA (against corporate defendants); (4) failure to provide reasonable accommodation (against corporate defendants); (5) failure to engage in interactive process (against corporate defendants); (6) retaliation in violation of FEHA (against corporate defendants); (7) violation of California Family Rights Act ("CFRA") (Government Code § 12945.1 et seq.) (against corporate defendants); (8) retaliation in violation of CFRA (against corporate defendants); (9) failure to prevent discrimination and retaliation in violation of FEHA (against corporate